

Texas WIC Health and Human Services Commission

Effective: April 1, 2026

Policy No. CS:11.0(eWIC)

Certification of Foster Children

Purpose

To ensure individuals at nutritional risk receive program benefits.

Authority

USDA FNS Instruction 803.3

Policy

Foster children must be certified eligible for WIC Program benefits according to age, residency, income, nutritional risk requirements and physical presence. Children left in the care of a family member or friend are not considered foster children unless placed through the Department of Family Protective Services (DFPS).

Definitions

Assign Texas WIC Card – The process of assigning the Texas WIC Card to an economic unit.

Cancel (i.e. deactivate) – The process in the MIS that permanently cancels the current card. When a new card is assigned, a PIN must be set.

DFPS placements include:

- Foster family home or group home that has been either trained and verified by DFPS, licensed by the Health and Human Services Commission's Office of Residential Child-Care Licensing (RCCL), or verified by an RCCL-licensed child-placing agency.
- Residential group care facility - that has been licensed by RCCL; or a facility under the authority of another state agency.

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- Infant or child placed by DFPS with a relative, close family friend or others who have a long-standing relationship with the infant/child.

Disaster mode_ – A feature in the MIS which allows reissuance of the current month benefits.

Economic Unit – All persons, related and/or unrelated, living together in the same dwelling, except in the following special situations: pregnant woman, infants/children placed through Department of Family Protective Services (DFPS); e.g., foster/kinship, and individuals who qualify as a separate economic unit.

Electronic Benefit Account – The account where food benefits are being held for redemption.

WIC Card Management Line – An interactive voice response system where clients can manage the Texas WIC Card (set/reset the PIN, cancel/replace the card), obtain food benefit balances, and speak to a customer service associate.

Procedures

- I. At the time of initial certification, the DFPS placement authorization letter must be obtained and uploaded to the Notes section of the foster infant/child record in the MIS.
 - A. When the placement authorization letter is unavailable, verbal declaration of the foster placement must be obtained from DFPS. Staff must document the DFPS contact name and phone number in the Notes section of the foster infant/child record in the MIS.
 - B. The foster infant/child must be screened according to the criteria defined in Policy [CS:01.0](#).
 - C. Infants and children placed by DFPS with a relative, close family friend or others who have a long-standing relationship with the infant/child may be screened utilizing Policy [CS:07.0](#) or [CS:08.0](#) if the DFPS placement letter is not available.

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- II. A foster infant/child must be considered a one-person household.
 - A. The income of the foster infant/child must be the payments made by DFPS or money received from any outside source.
 - B. Most relatives are not certified as foster parents and do not receive foster care payments. However, money received from any outside source for the care of the infant/child must be considered as income. If the relative does not receive any money for the care of the infant/child, the income will be zero.
- III. Assign risk code 903, Foster Care (see Policy [CS:18.0](#)) and all qualifying risk conditions, when certifying a participant who has entered foster care or has moved from one foster care home to another foster care home during the previous six months.
- IV. If eligible for WIC services, the foster infant/child must be assigned a Texas WIC Card separate from the foster family. Multiple foster children, including siblings, residing in the same foster home must each be assigned a separate Texas WIC Card.
- V. Foster Transfers- When a foster child transfers to another household, the MIS will automatically void current and future unredeemed food benefits, cancel the card and assign 'change of custody' as the reason.
 - A. Foster to Foster: When a participant is removed from a foster home and placed in another foster home.
 - 1. Gaining clinic transfers foster child's record from losing family, as outlined in Policy [CS:27.0](#).
 - 2. Upload unredeemed current and future months benefits to the foster economic unit's EBA. When the MIS indicates all current month benefits have been redeemed and the gaining foster parent indicates they do not have any other resources to provide for the child, reissue current months' benefits. Use MIS "Foster to Foster" Disaster Mode option in the MIS and have the client sign the electronic disaster form. LA staff must issue a full (on or before the

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- 15th) or partial (on or after 16th of month) food package based on the day of month.
3. A Texas WIC card must be assigned to the new Foster Parent. Staff must inform the participant/parent/guardian to assign a PIN through myWIC or WIC Card Management Line prior to shopping at a grocery store.
- B. Foster to parent/guardian/caretaker (Biological): When a participant is removed from a foster home and is reunited with his/her parent/guardian/caretaker(s):
1. Parent must present the child at the WIC appointment, or provide written documentation, or verbal verification from DFPS. Staff must document, in the Notes section of the infant/child record in the MIS, the DFPS contact name and phone number.
 2. Gaining clinic transfers foster child's record to parent/guardian/caretaker's family record.
 - a. Update the foster indicator to "No."
 - b. Upload unredeemed current and future months benefits to parent/guardian/caretakers (biological) economic unit's EBA when the MIS indicates all current month benefits have been redeemed. Upload future months' benefits only.
 - c. Assign a new Texas WIC Card if the family doesn't already have a card assigned to the family economic unit, per Policy [CS:25.0](#), effective April 1, 2026.
 - i. If certification end date is more than 90 days away, an income reassessment must be completed and be required to provide acceptable documentation of the household income or eligibility in an adjunctive program at the next appointment.
 - ii. If the child's certification has expired, perform a recertification.

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- C. Foster child is adopted by foster family: The child becomes part of the adoptive family's economic unit. The child is in an active certification and the adoptive family is currently participating in the WIC program:
 - 1. Transfer and add the child to the adoptive family's record, if not already in the same record.
 - 2. Update the foster indicator to "No."
 - 3. Upload unredeemed current and future months benefits to adoptive economic unit's EBA. When MIS indicates all current month benefits have been redeemed, upload future months' benefits only.
 - 4. Assign a new Texas WIC card if the family doesn't already have a card assigned to the family economic unit, per Policy [CS:25.0](#), effective April 1, 2026.
- D. If the adoptive family is not participating in the WIC Program:
 - 1. Create a new family record for the adoptive family.
 - 2. Transfer the foster child's participant record to the adoptive family's record.
 - 3. Update the foster indicator to "No." Upload unredeemed current and future months benefits to adoptive economic unit's EBA. When MIS indicates all current month benefits have been redeemed, upload future months' benefits only.
 - 4. Assign a Texas WIC card for the adoptive family, per Policy [CS:25.0](#), effective April 1, 2026.
- E. If certification end date is more than 90 days away, an income reassessment must be completed and be required to provide acceptable documentation of the household income or eligibility in an adjunctive program at the next appointment.
- F. If the child's certification has expired, perform a recertification.

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- G. If a foster child has been adopted, staff must accept current Medicaid verification as income even if it continues to list the foster child's name rather than the adoptive name.
 - H. If the adopted individual is an infant or pregnant woman, his/her Medicaid eligibility must be used as income for the other household members per Policy [CS:08.0](#) Procedure I.